

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 8-17-26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Jerral Brown v. Amanda Garcia**
Superior Court Case No. 25CECG05620

Hearing Date: August 18, 2026 (Dept. 502)

Motion: Defendant Amanda Garcia's Demurrer to the Tenth and Twelfth Causes of Action

Tentative Ruling:

To overrule Amanda Garcia's demurrer with respect to the tenth and twelfth causes of action. Amanda Garcia to file and serve her answer within 20 days of the clerk's service of this order.

Explanation:

Plaintiff, Jerral Brown ("Brown" or "plaintiff") filed the underlying complaint on December 4, 2025, asserting causes of action for (1) breach of oral contract, (2) breach of implied covenant of good faith and fair dealing, (3) promissory estoppel, (4) unjust enrichment, (5) quantum meruit, (6) breach of fiduciary duty, (7) violations of statutory partnership duties, (8) accounting, (9) conversion, (10) ouster, (11) violation of Business and Professions Code § 17200, and (12) partition. These claims are based on an alleged oral Airbnb joint venture agreement where the parties agreed to jointly renovate, furnish, manage, and operate the properties located at 20149 Siena Drive, Friant, California 93626 ("Siena Property"), and 431 E. Cornell Ave., Fresno, California ("Cornell Property").

Defendant, Amanda Garcia ("Garcia" or "defendant"), demurs to the tenth and twelfth causes of action for ouster and partition, respectively, for failure to state facts sufficient to constitute a cause of action.

The function of a demurrer is to test the sufficiency of a pleading by raising questions of law. (*Plumlee v. Poag* (1984) 150 Cal.App.3d 541, 545.) As relates to a complaint, the test is whether plaintiff has succeeded in stating a cause of action; the court does not concern itself with the issue of plaintiff's possible difficulty or inability in proving the allegations of the complaint. (*Highlanders, Inc. v. Olsan* (1978) 77 Cal.App.3d 690, 697.) In assessing the sufficiency of the complaint against demurrer, we treat the demurrer as admitting all material facts properly pleaded, bearing in mind the appellate courts' well established policy of liberality in reviewing a demurrer sustained without leave to amend, liberally construing the allegations with a view to attaining substantial justice among the parties. (*Glaire v. LaLanne-Paris Health Spa, Inc.* (1974) 12 Cal.3d 915, 918.)

Ouster

Garcia demurs to the tenth cause of action on the grounds that an equitable interest in real property does not allow a party to bring a claim for ouster. (Garcia's Moving Papers, pp. 2:18-3:18.)

Civil Code section 843, subdivision (a) provides:

If real property is owned concurrently by two or more persons, a tenant out of possession may establish an ouster from possession by a tenant in possession in the manner provided in this section. This section does not apply to the extent the tenant out of possession is not entitled to possession or an alternative remedy is provided under the terms of an agreement between the cotenants or the instrument creating the cotenancy or another written instrument that indicates the possessory rights or remedies of the cotenants. This section supplements and does not limit any other means by which an ouster may be established.

Ouster is grounded in the law of tenancy in common and is based upon the principle that "[e]ach tenant in common equally is entitled to share in the possession of the entire property and neither may exclude the other from any part of it." (*Zaslow v. Kroenert* (1946) 29 Cal.2d 541, 548.) The relation of tenants in common with equal rights to occupancy of real property is one of co-owners. Neither owes rent to the other, but "where one cotenant wrongfully ousts the other and prevents him from enjoying joint possession ..., the wrongfully ousted cotenant may recover the damages resulting from the ouster, which ordinarily are his share of the value of the use and occupation of the land during the period of the ouster." (*Brunscher v. Reagh* (1958) 164 Cal.App.2d 174, 176-177; see also *De Harlan v. Harlan* (1946) 74 Cal.App.2d 555)

Garcia argues, without citing any authority, that "[t]he types of cotenancy are set forth in Civil Code § 682-685. A cotenant is not someone with an *alleged* equitable interest in real property." (Garcia's Reply Papers, pg. 2:16-17, italics not added.)

Civil Code section 682 defines the four types of jointly owned property: (a) of joint interest; (b) of partnership interests; (c) of interests in common; (d) of community interest of spouses.

Civil Code section 683, subdivision (a) defines a "joint interest" as follows:

A joint interest is one owned by two or more persons in equal shares, by a title created by a single will or transfer, when expressly declared in the will or transfer to be a joint tenancy, or by transfer from a sole owner to himself or herself and others, **or from tenants in common or joint tenants to themselves or some of them**, or to themselves or any of them and others, or from spouses, when holding title as community property or otherwise to themselves or to themselves and others or to one of them and to another or others, when expressly declared in the transfer to be a joint tenancy, or

when granted or devised to executors or trustees as joint tenants. A joint tenancy in personal property may be created by a written transfer, instrument, or agreement.

(Emphasis added.)

Civil Code section 683 does not preclude that a joint tenancy may be created on equitable grounds. Furthermore, “[a] joint tenancy may, of course, be created in an equitable or legal estate or any other kind of estate recognized by the law. (Citations omitted.) (*Riley v. Turpin* (1956) 47 Cal.2d 152, 155.)

Civil Code section 684 defines a partnership interest “owned by several persons, in partnership, for partnership purposes.” Civil Code section 685 defines an interest in common as one “owned by several persons, not in joint ownership or partnership.” Furthermore, Civil Code sections 684 and 685 do not preclude ownership on equitable grounds.

Here, Brown alleges that he possessed a 50 percent equitable ownership interest arising from the parties’ joint venture agreement; specifically, as to the Siena property, under which he contributed substantial capital, labor, renovations, and management services toward the acquisition and operation of the Airbnb business. After accepting those contributions, Defendant allegedly changed the locks, denied Plaintiff access to the properties, excluded him from the business, seized exclusive control of the Airbnb operations, locked him out of the joint business’ bank account, and retained all profits and equity for herself. (Complaint, ¶¶ 125-133.)

Accordingly, Brown has pled sufficient facts, based on equitable ownership, in order to state a cause of action pertaining to ouster. Garcia’s demurrer with respect to the tenth cause of action is overruled.

Partition

Garcia demurs to the twelfth cause of action as Brown does not assert he has legal title to the Siena Property. Brown’s complaint asserts Brown has equitable title to the Siena property. (Garcia’s Moving Papers, pp. 3:26-4:3.)

“In this state partition of real property is a special statutory proceeding available only under circumstances authorized by Code of Civil Procedure section 752 [currently CCP § 872.210.]” (*Powers v. Powers* (1963) 221 Cal.App.2d 746, 748.)

Code of Civil Procedure section 872.210, subdivision (a) provides who may commence a partition action:

- (a) A partition action may be commenced and maintained by any of the following persons:
 - (1) A co-owner of personal property.
 - (2) An owner of an estate of inheritance, an estate for life, or an estate for years in real property where such property or

estate therein is owned by several persons concurrently or in successive estates.

Code of Civil Procedure section 872.230, subdivision (b) only requires that a complaint for partition describe “[a]ll interests the plaintiff has or claims in the property.” “At the trial, the court shall determine whether the plaintiff has the right to partition.” (Code Civ. Proc., § 872.710.) “The interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action.” (Code Civ. Proc., § 872.610.)

In this case, Brown has alleged he is a co-owner of Siena Property. Brown alleges that the parties entered into a 50/50 joint venture under which Brown contributed substantial capital, labor, management, and resources in exchange for a one-half ownership interest in the Siena Property. Brown further alleges equitable ownership through constructive trust, resulting trust, unjust enrichment, and joint venture theories. Brown has alleged sufficient facts stating his interest. (Complaint, ¶¶ 144-151.) Under these circumstances, Brown has pled sufficient facts for the cause of action pertaining to partition. Brown has also stated the basis for his interest with respect to the properties in question.

Garcia's reference to *Akagi v. Ishioka* (1975) 47 Cal.App.3d 426, 433 (“*Akagi*”), for the proposition that a co-tenancy is required in order to commence a partition action, is inapplicable as *Akagi* has been abrogated by amendment of California Code of Civil Procedure section 872.210 to add subdivision (a)(2)). Garcia provides in her reply:

The two minimum requirements to maintain an action for partition are (1) hold and possess, and (2) cotenancy interest. *Akagi*, 47 Cal.App.3d at 429, citing *Jameson v. Hayward*, (1895) 106 Cal. 682, 686-687. Only cotenants can bring a partition action since “it is the cotenancy which gives the right to a partition.

(Garcia's Reply, 4:5-8.)

The relevant portion of *Jameson v. Hayward*, (1895) 106 Cal. 682, 686-687 provides:

Section 752 of the Code of Civil Procedure reads as follows: “When several cotenants hold and are in possession of real property as parceners, joint tenants, or tenants in common, in which one or more of them have an estate of inheritance, or for life or lives, or for years, an action may be brought by one or more of such persons for a partition thereof according to the respective rights of the persons interested therein, and for a sale of such property or a part thereof, if it appear that a partition cannot be made without great prejudice to the owners.”

As discussed above, Code of Civil Procedure section 872.210 does not require a co-tenancy to commence a partition action. (Code of Civil Procedure section 752 was repealed by Stats.1976, c. 73, p. 110, § 4, and Code of Civil Procedure section 872.210

superseded former Sections 752 and 752a, added by Stats.1976, c. 73, p. 110, §6.) All that is required co-ownership.

Finally, Civil Code sections 1091 and 1624 are not pertinent to this discussion as those statutes govern the transfer of legal title, not the recognition of equitable ownership arising through operation of law.

Accordingly, Garcia's demurrer with respect to the twelfth cause of action is overruled.

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